

Who Decides

Someone has to sign for a cremation, and Washington law is specific about who that someone is. This explains the order, what happens when a family disagrees, and how to make sure the decision is yours rather than theirs.

SECTION 1

Who Has the Right to Decide

Washington sets a specific order, and it is not always who families expect

A cremation cannot happen until someone with the legal right to decide has signed for it. Washington law lists who that is, in order. If the person at the top is unavailable, the right moves to the next.

Where all of this comes from

Everything in this guide rests on a single Washington law: **RCW 68.50.160**, titled "Right to control disposition of remains."

RCW stands for Revised Code of Washington, which is simply the state's collection of laws. The number is its address: title 68, chapter 50, section 160. Title 68 is the part of state law dealing with cemeteries and human remains.

It is short, written in reasonably plain English, and you are welcome to read it yourself and check anything we say here against it. **Read RCW 68.50.160 →**

This is the list the law sets out, from the top down:

1 The person you named in writing yourself

Your own signed and witnessed instructions come first. Section 2 covers this

2 Your designated agent

Someone you named in a written document, signed and dated in front of a witness. Note that this ranks above a spouse

3 Your spouse or state registered domestic partner

4 A majority of your adult children

A majority, not any one of them. This is where most disputes happen

5 Your parents

6 A majority of your siblings

7 A court-appointed guardian

If one was appointed for you at the time of death

The order above is set out at **RCW 68.50.160(3)**, subsections (a) through (g).

There is one step above all of these. If a person dies while serving in the military, whoever they named on their DD Form 93 comes first.

One provision worth knowing about

If a person who would otherwise hold the right of control is arrested or charged with murder or first degree manslaughter in connection with the death, that right is given up and passes to the next person on the list.

RCW 68.50.160(4)

SECTION 2

Deciding for Yourself

Two ways to settle it so nobody else has to

You do not have to leave this to the list. Washington gives you two ways to decide for yourself, and both of them outrank every family member.

Put your wishes in writing

A written document saying where and how you want to be laid to rest, signed by you in front of a witness, is legal authorization on its own. No family member has to agree to it, before or after.

The simpler and clearer it is, the better it works.

RCW 68.50.160(1)

Sign your own authorization

You can sign the cremation authorization yourself, in advance, for your own cremation.

When you have, **we need only one signature from your next of kin afterward** rather than gathering the whole family. One person, one signature, on a day when that is worth a great deal.

Make an arrangement and file it with us

This is the stronger of the two, and almost nobody knows it.

A prearrangement that is prepaid, or simply filed with a licensed funeral establishment or cemetery, **cannot be cancelled or substantially changed by your survivors**. It is not a request. It holds.

RCW 68.50.160(2)

Why that second one matters so much

Most people assume a pre-plan is a strong suggestion, and that a determined family member could undo it. In Washington, that is not the case. The law says in as many words that a prepaid or filed prearrangement is not subject to cancellation or substantial revision by survivors, and that we are protected in following it.

So if there is any chance your family will disagree about this, the surest thing you can do is make the arrangement and leave it on file. Not a note in a drawer, and not a line in your will, which is usually read after the funeral has already happened.

It also spares your family the paperwork. Ordinarily we try to collect signatures from all of your next of kin. If you have signed your own authorization, one of them signs and that is the end of it.

One practical note. This is paperwork we usually complete for families who have made their arrangements with us, so the place to begin is the arrangement itself. The filing follows from it. Making one costs nothing to ask about: there is no cost to file your wishes with us, and no obligation to prepay.

Tell us if you name someone, and give us a copy. A document nobody can find does not help anybody.

SECTION 4

When the Family Has to Decide

Majorities, deadlocks, and people who cannot be found

When there are no written wishes and no designated agent, the decision falls to the family, and this is where the difficult situations arise.

A majority means a majority

If the right falls to adult children, it takes more than half of them. Three of five is enough. Two of four is not. The same rule applies to siblings.

In practice we go further than the law requires. Where we can, we gather signatures from all of the next of kin rather than the bare majority. Our form has room for seven, and a line recording how many signatures were required out of how many people.

That is not bureaucracy. Every person who signs is a person who cannot later say they were not consulted, and it protects the family member who would otherwise be signing alone.

What a deadlock actually looks like

Four adult children, split two and two. Nobody has a majority, so nobody can authorize anything, and their parent stays in our care while they work it out. We have seen this take weeks.

There is no clever solution once you are in it. The family either reaches agreement or someone goes to court. Which is exactly why Sections 2 and 3 exist, and why a single sheet of paper signed years earlier is worth more than any argument anyone can make afterward.

When someone cannot be reached

Sometimes a person with an equal or greater right cannot be located. A brother nobody has spoken to in a decade. A child who moved and left no address.

The law allows us to proceed after a good faith effort to find them, relying on the most responsible party available. Our form has a section where those people are listed by name and the person signing accepts responsibility for the decision. We do not take that lightly, and neither should you.

RCW 68.50.160(5)

SECTION 5

Why It May Take Longer Than You Expect

Signing is one step. Several others have to fall into place first

Families often assume that once the authorization is signed, the cremation happens the next day. Sometimes it does. Often it does not, and the delay has nothing to do with us being slow.

A cremation cannot legally proceed until all of the following are in place:

SECTION 3

Naming Someone Other Than Next of Kin

The designated agent, and why it exists

Sometimes the person best suited to handle this is not the person the law would pick. Washington allows for that. You can name a **designated agent** in a written document, signed and dated in front of a witness, and that person's direction is enough to decide the type, place, and method of disposition.

The law calls this the designated agent, at **RCW 68.50.160(3)(b)**, and ranks it above every family member on the list.

A designated agent ranks above your spouse and above your children. It is worth considering if any of the following apply:

You are separated but not divorced

A spouse remains a spouse in the eyes of this law until a divorce is final, no matter how long you have lived apart.

Your partner is not your legal spouse

A long-term partner who is not married to you and not a registered domestic partner has no standing on this list at all.

Your children do not agree

If you know they would deadlock, naming one person spares them a fight they cannot win on their own.

Your closest person is not family

A friend, a caregiver, or a church member you trust has no place on the list unless you put them there.

You are estranged from your relatives

The law does not know about estrangement. It only knows about relationships.

You want to spare someone the burden

Naming an agent is as often about relieving a person as it is about choosing one.

The medical certifier signs their side of the death certificate

This is the one that holds most families up. The physician who attended your loved one, often the doctor overseeing their hospice care, has to complete and attest to the cause of death before anything else can move. It is a signature in somebody else's office, on somebody else's day

The report of death is filed and registered

This is what most people call filing the death certificate. We file it, but it cannot be registered until the certifier's portion above is complete

A permit authorizing final disposition is issued

The local registrar issues it once the report of death is registered. Nothing can happen before it arrives

The authorization is signed by the right person or people

Everything in Sections 1 through 4 of this guide

The medical examiner or coroner has released the case

This applies only to the smaller number of deaths where their office takes jurisdiction. Where it does, nothing proceeds without their consent

The first two come from **RCW 70.58A.200**, which covers filing and registering the report of death and gives the medical certifier two days to attest to the cause, and **RCW 70.58A.210**, which says final disposition may not happen until that report is registered and a burial-transit permit has been issued. Where a coroner or medical examiner has jurisdiction under **RCW 68.50.010**, they are the one who attests to the cause, and they may record it as pending investigation, which is what holds up everything else.

The doctor's signature is usually what everyone is waiting on

In most deaths no medical examiner is involved at all. What there is, is a physician (the attending doctor, or the one overseeing hospice care) who has to complete and sign their portion of the death certificate. Until that is done the report cannot be registered, the permit cannot be issued, and nothing else can move, however ready the rest of the file is. That signature sits in another office, on another practice's schedule.

What we can do is chase it, and tell you where it stands. We follow up with the certifier's office, and we will tell you plainly whether it has been signed and, if not, who we are waiting on. That is usually the difference between a real answer and a guess.

Where a coroner or medical examiner does take jurisdiction, the wait belongs to the county instead, and we cannot shorten that one either. But it is the less common case, not the usual one.

While all of this is happening, your loved one is cared for here. Nothing about the wait changes that, and there is no cost to you for our asking on your behalf.

SECTION 6

What Signing Actually Means

What every authorizing agent should understand

Signing a cremation authorization is not a formality, and we would rather explain it than have you discover it later.

You are taking on responsibility

The authorizing agent agrees to defend and hold the crematory harmless against claims brought by anyone else who says they had the right to decide.

In plain terms: if a relative comes forward angry, the person who signed is the one who answers for it. Not us.

The point of all this

None of it is meant to frighten anyone out of signing. Families sign these every day and it is almost always straightforward.

But it is a real legal responsibility, taken on by a person in the worst week of their life, usually without anyone explaining what it is. If you sign your own authorization in advance, the weight of it never lands on them, and only one of them needs to sign at all.

SECTION 7

Before You Sign, Know This

What the authorization commits to, in plain terms

The authorization form comes with a page of policies, and most people sign without reading it. Here is what actually matters in it.

Cremation cannot be undone

Unlike a burial, there is no reversing it. Everything else here follows from that

Every cremation is performed individually

The only exception is close relatives, and only with written instructions given in advance

Jewelry and dental gold are not recovered

Anything left with your loved one is destroyed or disposed of. If you want a ring back, tell us before, not after

The remains are processed

What comes out of the chamber includes recognizable bone fragments. Unless you ask otherwise, they are then reduced to a fine, uniform texture

A very small amount cannot be recovered

Every reasonable effort is made, but some residue always remains in the equipment. This is true of every crematory everywhere

The urn is needed before we release the remains

Not before the cremation. The cremation can go ahead without one. But we cannot release your loved one to you until there is an urn or container to release them in, so it is worth choosing early rather than on the day you come to collect

Witnessing is available

Families may be present to see the container placed into the chamber if they wish. Once the chamber is closed, you may press the button to begin the cremation yourself. There is a charge for it, so ask us when you arrange

Your loved one is tracked by a numbered metal disc

Every person cremated here has an identification disc that stays with them through the entire process and is placed in the cremated remains. It is how we know, at every step, exactly who is in our care

Collecting the remains needs an appointment and identification

We release to the named person only, and we check. That protection is the point

Ask about any of this before you sign rather than after. There are no questions here we have not been asked before, and none we would rather you didn't ask.

SECTION 8

Common Questions

What families ask us most

Can my family overrule what I wanted?

Not if you have put it in writing properly. Your own signed and witnessed instructions are legal authorization on their own, and a prearrangement filed with us cannot be cancelled or substantially changed by survivors. A verbal wish, on the other hand, is only as strong as the family's agreement about what you said.

Is it enough to put it in my will?

No, and this is a common and costly mistake. Wills are usually read days or weeks after the funeral has already taken place. Whatever it says about your wishes will be read too late to matter. Keep it separate, and give us a copy.

My siblings and I cannot agree. What happens now?

Nothing can proceed until a majority of you authorize it. Your loved one remains in our care in the meantime. If you cannot reach agreement, the remaining option is for someone to ask a court to decide, which is slow and expensive and hard on everyone.

Sometimes it helps to sit down with us and separate what is actually a disagreement about the cremation from what is a disagreement about something else. Often it is the second one.

Can I name my partner if we are not married?

Yes, by naming them as your designated agent in a signed, witnessed document. Without that, an unmarried partner who is not a registered domestic partner has no standing at all, no matter how long you have been together. This is one of the most important reasons the designated agent exists.

What if a family member cannot be found?

We can proceed after a documented good faith effort to locate them. That person is listed by name on the authorization, and the person signing accepts responsibility for the decision. Tell us early if you think someone will be hard to reach, because it takes time to do properly.

Does a power of attorney let me decide?

Usually not, and this trips up a lot of people. Most powers of attorney end at the moment of death, which is exactly when you would want to use one.

There is an important exception. **Some powers of attorney are written to specifically grant the right to control disposition**, or include wording to that effect. Those can work.

So the answer depends entirely on what your document actually says. If you are counting on a power of attorney for this, bring it in and let us read it well before it is needed rather than finding out at the worst possible moment.

Does being the executor of the estate let me decide?

Not by itself, and it is one of the most common mix-ups. The executor's job is to settle the estate (the property, the accounts, the debts), and that authority usually does not begin until the will has been filed with the court, which is often weeks after the funeral. **Being named executor does not place you on the list in Section 1.**

Often the executor is also the spouse or one of the adult children, in which case they do have the right, but through that relationship, not through the title. If the person you want deciding is not near the top of that list, the way to give them the authority is to name them your designated agent, the separate document described in Section 3.

Can I sign my own cremation authorization ahead of time?

Yes, and it is one of the most useful things you can do. Normally we try to gather signatures from all of your next of kin. If you have already signed your own authorization, we only need one signature from them.

For a family spread across the country, or one that does not agree easily, that difference is enormous.

How do I set this up?

Come and see us. Recording your wishes and filing them costs nothing and commits you to nothing, and it takes about as long as a cup of coffee. If you want to go further and pre-arrange, we can do that in the same conversation.

This guide explains general rules and is not legal advice. The order of priority and the rights described here come from RCW 68.50.160. Laws change and every family's situation is different. For a contested situation, or to be certain a document you have drafted will do what you intend, please speak with an attorney.
